



Judiciary Judiciary Training Institute National Council on Administration of Justice (NCAJ)

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Rec. No.	Recommendation	Action	Indicator
142.12	Consider ratifying the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty.	Take steps towards the ratification of the Second Optional Protocol to the ICCPR through undertaking of public sensitization forums on the abolition of death penalty.	No. of stakeholders sensitized on the Second Optional Protocol to the ICCPR.
142.49 142.52	Continue with the Security Sector reforms to enable police to effectively protect and respect human rights.	Undertake security sector reforms to enable police to protect and respect human rights. Strengthen Accountability Mechanisms in the security sector.	- Number of police stations with an operational digitized OB. - Finalize the development of guidelines on the use of force, firearms, and public order management. - No. of officers awarded for respected of human rights. - No of complaints lodged by the public. - No. of cases investigated, prosecuted, and convicted. - No. of disciplinary cases commenced and concluded.
142.176	Ensure that surveillance and profiling of citizens respect the right to privacy including judicial oversight.	Put in place safeguards to ensure that surveillance and profiling of citizens respects human rights.	No. of safeguards (e.g., Guidelines, Regulations, Manuals) in place for the protection of citizen's right to privacy.
142.90	Continue the efforts to put an end to extra-judicial killings by police officers, including in the context of counterterrorism measures.	Develop strategies to end extra judicial killings by police including within the context of counter terrorism.	- Number of officers prosecuted and convicted for extra judicial killings. - Guidelines on use of force, firearms and public order management developed.
142.81	Commute the death sentences of the remaining 810 death row inmates.	Commute the death sentences of inmates on death row.	Number of prisoners whose death sentences have been commuted to life.

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142.82 142.83	Finalize the implementation of the National Court ruling declaring death sentence to be unconstitutional.	Adopt measures, including review of laws to comply with the Supreme Court ruling on the unconstitutional nature of the mandatory death penalty.	- Number of Laws reviewed and amended. - No of prisoners on death row for murder charges who have been resentenced as a result of the Muruatetu case. - No. of Prisoners on death row whose sentence has been commuted.
142.84 142.85 142.86 142.87 142.88 142.89	Continue taking steps to abolish the death penalty.	Undertake steps towards abolishing of the death sentence including carrying out sensitization forums and public surveys.	Public Survey Report on abolition of the Death Penalty.
142.130	Set up specialized courts that enable the speeding up and the effective treatment of gender-based violence cases.	Commence stakeholders engagements on the establishment of specialized courts to deal with SGBV.	- Concept Paper developed and disseminated. - No. of stakeholder forums held. - Number of investigators prosecutors and Judges trained on how to handle SGBV Cases.
142.68 142.69 142.70 142.71 142.72	Continue efforts aimed at fighting corruption as well as illicit financial flows and tax avoidance.	Put in place measures to fight corruption, illicit financial flows, and tax avoidance.	- National Ethics and Anti-Corruption Policy Implemented. - No. of Assets recovered from Corruption.
142.69 142.70	Take further measurable efforts to combat corruption, including by ensuring thorough and effective investigation, prosecution of all suspects and punish perpetrators.	Combat corruption through investigation, prosecution, and punishment of perpetrators.	Number of cases investigated and prosecuted.
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142.149 142.135	Implement the recommendations made by the Truth, Justice, and Reconciliation Commission, including investigating, and punishing those responsible for serious human rights violations as well as providing remedy to the victims.	Ensure reparations for victims of human rights violations through development of a policy on reparations.	Reparations Policy Developed.
142.136 142.168	Intensify efforts to secure redress for survivors of sexual violence following 2007 and 2017 Presidential elections and establish mechanisms to ensure such crimes are never repeated.	Provide redress for survivors of SGBV following 2007 and 2017 Presidential elections.	- No. of victims who have received compensation and psychosocial support. - No. of law enforcement officers who have received training.
		Establish Joint Election Security Coordination Framework.	Joint Election Security Coordination Framework established.
142.155	Implement the recommendations of the 2017 EU Election Observation Mission, especially to strengthen the independence of the media and journalists and to provide protection for civil society.	Implement recommendations of 2017 EU Election Observation Mission on strengthening independence of media and journalists and protection of civil society.	Recommendations Implemented.
142.167 142.169	Ensure that all human rights are duly respected and protected in the run up to and during the coming general elections in 2022.	Fully Implement the 2021 IEBC Elections Operations Plan.	The IEBC Elections Operations Plan Implemented.
		Prosecute violators of human rights in the run up to, during and after the 2022 general elections.	No. of Cases prosecuted.

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142.134	Combat hate speech, particularly during election periods, and punish incitements to racial or ethnic hatred.	Combat hate speech during elections through conducting public awareness campaigns directed at voter and civic education, issue-based campaigns, inter-group dialogue and tolerance with a specific focus on hate speech and incitement to hatred in electoral campaigns.	• No. of stakeholders trained.
142.133	Continue to prosecute acts of racial discrimination and hate speech and adopt a comprehensive strategy to eliminate harmful cultural practices.	Investigate and Prosecute Cases on Racial Discrimination and Hate Speech.	• No. of cases investigated and prosecuted.
142.73 142.74 142.75	Ensure the final approval, launch and execution of the National Action Plan for the implementation of the Guiding Principles on Business and Human Rights.	Build Capacity and Disseminate the National Action Plan on Business and Human Rights.	• No. of stakeholders trained on Business and Human Rights and the National Action Plan on Business and Human Rights.
		Implement the Alternative Justice Policy to Promote the use of Alternative Dispute Resolution mechanisms in dealing with disputes between businesses and those harmed by their operations.	• Percentage of implementation of the Alternative Justice System (AJS) policy.
142.125	Prohibit corporal punishment in schools and public institutions.	Enforce laws prohibiting corporal punishment in schools.	• No. of disciplinary cases against Teachers reported and addressed.
		Encourage the use of alternative discipline measures in schools and other institutions.	• Alternative discipline measures guidelines developed.
142.131	Continue to improve Kenya's juvenile justice system and place children at its core.	Take legislative and administrative measures to improve juvenile justice system.	• Children's Bill finalized Guidelines on prosecution of children in conflict with the law finalized. • Number of child protection units established in the police stations. • Legal aid offered to children in conflict with the law. • Time taken to prosecute cases involving children in conflict with the law.
142.132	Raise the age of criminal responsibility.	Raise the age of criminal responsibility by amending the penal laws.	• Penal Code amended.
142.248 142.249 142.250 142.251 142.252 142.253 142.254 142.255	Establish a long-term strategy to raise awareness and combat discrimination against people with disabilities and to enable allegations of discrimination to be brought before court, ensuring appropriate remedy to the victims.	Finalize the Persons with Disabilities Bill	• Persons with Disabilities Bill finalized
		Build capacities of judicial officers and legal practitioners on how to litigate or adjudicate cases of discrimination on the basis of disability.	• No. of Judges and advocates trained.
		Align PWD programmes with SDGs.	• Alignment of PWD programmes.